

9:00 A.M.

Calendar Lines # 1

Case Name Kristin Hoffman vs Kaiser Permanente Division of Research, Vaccine Study Center

Case No. 24CV429115

Motion for a Court Order to Advance a Hearing

I. BACKGROUND

A. BRIEF FACTUAL HISTORY

On January 16, 2024, Plaintiff Kristin Hoffman filed a Complaint against Defendant The Permanente Medical Group, Inc. (“TPMG”)¹ for allegations relating to the vaccination of her son, a minor. (Complaint).

B. RELEVANT PROCEDURAL HISTORY

The defendants filed a motion to compel arbitration and stay the action under Code of Civil Procedure section 1281.4 on March 27, 2025 based on the allegations asserted in the Complaint. That motion was heard on November 6, 2025 in front of the Honorable Shella Deen. After the hearing, on November 6, the Honorable Deen granted the defendants’ motion to compel arbitration and stayed the matter, a formal order was executed on December 3, 2025.

Since that ruling, the matter has been stayed. Arbitration proceedings were initiated and Thomas Denver was assigned as the arbitrator in this matter. (TPMG’s Opposition, p. 2). On March 5, 2026, the parties attended an arbitration management conference before Mr. Denver. (Declaration of Collin W. Wayne, p. 2). The arbitration is scheduled for April 19, 2027. (*Id.*).

Despite the stay, and after the arbitration management conference, the plaintiff filed three separate motions in this matter: (1) “Motion to Move Case Back to State Court After Exhausting Arbitration as a Legal Option” that was filed on April 30, 2026 and the clerk’s office set for hearing on January 14, 2027; (2) this present “Motion Requesting a Judge’s Order to Move Up Hearing Date” that was filed on May 4, 2026, and the clerk’s office set for hearing on June 23, 2026; and (3) “Motion for Summary Judgment in *Civil* Case” that was filed on May 4, 2026 and the clerk’s office set for hearing on August 6, 2026.

The Court carefully reviewed the following: Plaintiff’s “Motion Requesting a Judge’s Order to Move up Hearing Date” and attached Exhibits A-F (totaling 18 pages); Defendant’s Opposition to Plaintiff’s Motion (totaling 4 pages); Declaration of Collin W. Wayne in Support of Defendant’s Opposition and attached Exhibit A (totaling 12 pages); the defendant’s proof of service; and the pleadings.

II. LEGAL STANDARD

A. PROCEDURAL VIOLATION

As a preliminary matter, the court notes that the plaintiff’s moving papers was not accompanied by a proof of service to the defendants. Further, the motion did not include a notice of hearing on the motion and memorandum of points and authorities in support of the motion as required by California Rule of Court, rule 3.1112. There were no Declarations attached to the moving order but Exhibits A-F were attached. Plaintiff is hereby admonished for the violation. Any future violations may result in the court’s refusal to consider noncompliant papers.

¹ Defendant TPMG asserts that the plaintiff erroneously named as non-legal entity “Kaiser Permanente Division of Research, Vaccine Study Center, a Division of Kaiser Foundation Hospitals.” (Defendant’s Opposition, p. 1).

B. THE ACTION WAS STAYED IN ITS ENTIRETY PENDING THE OUTCOME OF ARBITRATION UNDER CODE OF CIVIL PROCEDURE SECTION 1281.4

Pursuant to Code of Civil Procedure section 1281.4:

If an application has been made to a court of competent jurisdiction, whether in this State not, for an order to arbitrate a controversy which is an issue involved in an action or proceeding pending before a court of this State and such application is undetermined, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until the application for an order to arbitrate is determined and, if arbitration of such controversy is ordered, until an arbitration is had in accordance with the order to arbitrate. . .

“Code of Civil Procedure section 1281.4 requires that a court impose a stay of litigation whenever that court, or another court, has ordered arbitration of a controversy that is an issue in the litigation.” (*MKJA, Inc. v. 123 Fit Franchising, LLC* (2011) 191 Cal.App.4th 643, 647). “The Court in which the litigation is pending is required to stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (*Ibid*). “The purpose of the statutory stay [required pursuant to section 1281.4] is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved.” (*Id.* at p. 658). “In the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective.” (*Ibid*). “[A] trial court possesses some amount of discretion to lift a stay imposed pursuant to section 1281.4, prior to the completion of an ordered arbitration.” (*Id.* at p. 660). “[T]he most reasonable interpretation of the stay provision is that it grants a trial court discretion to lift a stay prior to the completion of arbitration *only* under circumstances in which the lifting of the stay would not frustrate the arbitrator’s jurisdiction.” (*Ibid.*, emphasis added).

III. ANALYSIS

Here, the plaintiff seeks to advance a hearing on a “motion to move case back to state court after exhausting arbitration as a legal options” and asserts that the burden of proof for a civil case has been met. (Plaintiff’s motion, p. 3). Plaintiff asserts that this “. . . CIVIL case has evolved into a much larger CRIMINAL case” that necessitates that case to expediate and advance the hearing for public safety. (*Id.*)

Defendants opposes the motion and cites that the plaintiff fails to provide any legal authority to substantiate her request. (Defendant’s opposition, p. 2). Defendant emphasizes that on November 6, 2025, the court granted arbitration and stayed the matter in its entirety. (*Id.*; Declaration of Wayne, p. 2; Exhibit A). Given that order, the defendants assert that the plaintiff does not have grounds to file the three subsequent motions, including this motion. (*Id.*). Accordingly, Defendants seek to have the motion denied on procedural grounds. (*Id.*)

Given the procedural violations and deficiencies of the moving papers as well as the November 6, 2025 order granting arbitration and stay of the entire matter by the Honorable Deen, there is no grounds to lift the stay and entertain this motion at this time. Arbitration was ordered, initiated by the parties, an arbitration management conference was held, and arbitration is currently set for April 19, 2027.

IV. CONCLUSION

Based on the foregoing, the plaintiff’s “Motion Requesting a Judge’s Order to Move Up Hearing Date” is DENIED.

Furthermore, given the prior November 6, 2025 court order (formally executed on December 3, 2025 by the Honorable Shella Deen) granting arbitration and a stay in entirety under Code of Civil Procedure section 1281.4;

lack of legal authority to lift the said stay; and arbitration being set for April 19, 2027, the Court hereby VACATES the plaintiff's "Motion to Move Case Back to State Court After Exhausting Arbitration as a Legal Option" filed on April 30, 2026 that the clerk's office set for January 14, 2027, and "Motion for Summary Judgment in *Civil* Case" filed on May 4, 2026 that the clerk's office set for August 6, 2026.

The Court will prepare the formal Order.

Calendar Lines # 3-4

Case Name Raul Reynoso et al vs General Motors, LLC.

Case No. 24CV453791

Demurrer (Line # 3) and Motion to Strike (Line # 4)

Before the court is Defendant General Motors, LLC's Demurrer to Plaintiffs' First Amended Complaint ("FAC") (Line # 3) and Defendant's Motion to Strike punitive damages from Plaintiffs' FAC (Line # 4). Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. The Background portion is addressed in the Demurrer analysis.

DEMURRER (LINE # 3)

I. BACKGROUND

On or about March 31, 2017, plaintiffs Raul Galvez Reynoso and Jose Marin Ruiz (collectively, "Plaintiffs") entered into a warranty contract with defendant General Motors, LLC ("GM") regarding a 2017 Chevrolet Colorado vehicle ("Subject Vehicle"). (First Amended Complaint ("FAC"), ¶6). Defects and nonconformities to warranty manifested themselves within the applicable express warranty period including, but not limited to, engine defects, electrical defects, and steering defects. (FAC, ¶11). Said defects/ non-conformities substantially impair the use, value, or safety of the Subject Vehicle. (FAC, ¶12). Defendant GM has failed to either promptly replace the Subject Vehicle or to promptly make restitution. (FAC, ¶15).

On December 11, 2024, Plaintiffs filed a complaint against defendant GM asserting causes of action for:

- (1) Violation of subdivision (d) of Civil Code section 1793.2
- (2) Violation of subdivision (b) of Civil Code section 1793.2
- (3) Violation of subdivision (a)(3) of Civil Code section 1793.2
- (4) Breach of the Implied Warranty of Merchantability
- (5) Fraudulent Inducement – Concealment

On February 14, 2025, defendant GM filed a demurrer and motion to strike Plaintiffs' complaint.

On August 13, 2025, prior to a hearing on defendant GM's demurrer and motion to strike, Plaintiffs filed the now operative FAC which continues to assert the same causes of action asserted in Plaintiffs' original complaint.

On September 10, 2025, defendant GM filed the two motions now before the court, a Demurrer to Plaintiffs' FAC (Line # 3) and a Motion to Strike the prayer for punitive damages from Plaintiffs' FAC (Line # 4).

II. LEGAL STANDARD

Code of Civil Procedure section 871.21 sets forth only three circumstance in which the six-year limit "shall be tolled."